

HOUSE No. 1303

The Commonwealth of Massachusetts

PRESENTED BY:

Jeffrey N. Roy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to provide prompt payment following settlement by insurance company.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeffrey N. Roy</i>	<i>10th Norfolk</i>	<i>1/14/2025</i>

HOUSE No. 1303

By Representative Roy of Franklin, a petition (accompanied by bill, House, No. 1303) of Jeffrey N. Roy relative to payments following settlements by insurance companies. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1226 OF 2021-2022.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to provide prompt payment following settlement by insurance company.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 175 of the General laws is hereby amended by inserting the following Section
2 113A:

3 When an action to recover damages has been settled, any insurer which has agreed to pay
4 all or part of the settlement on behalf of a settling defendant, shall pay the amount due to any
5 settling plaintiff within twenty-one days of tender by the settling plaintiff to the settling
6 defendant of a duly executed release executed.